

*****Please note: this calendar will be heard in Department 53*****

Tentative Rulings

June 02, 2025

2:30 p.m.

*****IMPORTANT – PLEASE READ*****

Due to ongoing remediation efforts as a result of the water intrusion event in the courthouse, we are making every effort to minimize the amount of foot traffic in the courthouse. PLEASE DO NOT PHYSICALLY APPEAR FOR THE CALENDAR UNLESS IT IS ABSOLUTELY NECESSARY. The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail as soon as possible after Monday's calendar. IF YOU WISH TO APPEAR ON YOUR CASE, PLEASE CONSIDER APPEARING TELEPHONICALLY VIA WEBEX. Telephonic appearances can be made by calling the following phone number: **1-844-517-1271. When prompted, enter the following access code: **2490 169 8730**. Please be reminded that when you call in, you will be in open court and everything can be heard in the courtroom over the phone line. Please minimize all noise, or mute your phone if possible, and listen for your case to be called. Thank you for your patience and understanding. We apologize for any inconvenience.**

CONSERVATORSHIPS

CONSERVATORSHIP OF CLAYTON CAUDLE

Case Number: CVPG00-0022620

This matter is on calendar for hearing on a Petition for Appointment of a successor Limited Conservator of the Person. A Petition for appointment of a limited conservator after the death of a predecessor has the same requirements as a petition for initial appointment. Probate Code § 1860.5(a)(1). The Petition contains the following defects:

1. The matter has not been properly noticed. There is no proof of service filed for Far Northern Regional Center. The Regional Center must be served with a copy of the Petition and Notice of Hearing at least 30 days before the hearing. Probate Code §1461.4.
2. A Citation (form GC-320) was not issued or served for today's date. The citation must be personally served on the proposed Conservatee at least 15 days before the hearing. Probate Code § 1824.

The Public Defender has been appointed as counsel for the proposed Conservatee. The Court Investigator's Report recommends that the Petition be granted. This matter is continued to **Monday, July 7, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall have a Citation issued and served for the continued date. Petitioner shall also file and serve a Notice of Hearing for the continued date on all parties entitled to notice. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JEREMY ERICKSON

Case Number: 24PC-0032531

This matter is on calendar to confirm filing of the Proof of Service of Notice of Conservatee's Rights and Proof of Service of the Notice of Filing Inventory and Appraisal. All documents have been filed and are accepted by the Court. The Court confirms the future date of November 25, 2025, for Annual Review. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF GRETA GIVLER

Case Number: 23PC-0032165

This matter is on calendar for further proceedings on an Amended Petition to Address Actions of the Prior Power of Attorney, for Approval of Reconstructed Account, and for Damages for Elder Abuse. The Amended Petition has been noticed for hearing on June 30, 2025. That date is confirmed. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF PETER MITCHELL

Case Number: 24PC-0032302

This matter is on calendar for hearing on the First and Final Account and Second Report of Conservator of the Estate, Petition for its Settlement, Allowance of Fees and Costs, and Termination of the Estate. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Petition is **GRANTED**. No proposed order has been submitted. The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for confirmation of lodging of the proposed order. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN ROCHA

Case Number: 24PC-0032552

The matter is on calendar for further proceedings on a Petition for Transfer Orders and a Request to Amend Letters and Orders. The matters have been properly noticed, with proof of service on file. The Court previously continued the matters to allow Ms. Silva to file a formal objection. No objections have been filed, and the paperwork appears to be in order. The Request to Amend Letters and Orders is **GRANTED**. A proposed Amended Order has been submitted and will be executed, and the Amended Letters shall issue. The Petition to Transfer is **GRANTED**. A provisional order for transfer has been lodged and will be executed. The matter is set for **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of a provisional order accepting transfer from Wisconsin. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN SHADWELL

Case Number: CVPG03-0023876

This matter is on calendar on a Petition for Approval of Thirteenth and Final Account and Report of Conservator. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Accounting contains the following defect: Paragraph 7 of the Petition requests approval of prior payments to the Conservator in the sum of \$9,096.14. However, item 2 on page 5 requests the Court approve prior payments in the amount of \$7,262.92, paid to Petitioner. The correct amount is required to be clarified. No proposed order has been submitted. The matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for further proceedings regarding the Petition. An Amended Petition or supplemental declaration must be filed curing the defects noted above. Petitioner shall also timely file and serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF BEATRICE WORK

Case Number: 24PC-0032602

This matter is on calendar for confirmation of filing the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. None of the required documents have been filed. A Status Report has not been filed. The Court will issue an Order to Show Cause to Conservators, Susan L. Ellison and Walter L. Works, Jr., as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to file the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal, and failure to file a Status Report as ordered March 3, 2025. The hearing on the Order to Show Cause is set for **Monday, July 7, 2025, at 2:30 p.m. in Department 44.** The clerk is directed to prepare a separate Order to Show Cause.

This matter is also on calendar for further proceedings on a Notice of Motion to Withdraw Conservatorship. Nothing has been filed to cure the defects raised at the hearing April 21, 2025. The Court has reviewed the Court Investigator's report filed April 29, 2025, which recommends the Petition be granted and the conservatorship be terminated. The matter is continued to **Monday, July 7, 2025, at 2:30pm in Department 44** for further proceedings on the Motion to Withdraw. To move forward with the Petition, an amended petition must be filed curing the defects noted at the last hearing, and a new Notice of Hearing for the continued hearing date must be timely filed and served on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATES

ESTATE OF EDNA ASHER

Case Number: 25PB-0032809

This matter is on calendar for further proceedings on an Amended Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The matter is set for **Monday, October 13, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, June 8, 2026, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF MARY AULD

Case Number: 23PB-0032084

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. This matter is continued to **Monday, July 7, 2025, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of September 8, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF NANCY BEACON

Case Number: 22PB-0031566

This matter is on calendar for hearing on the Petition for Final Distribution on Waiver of Account. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that statutory compensation has not been calculated correctly. The real property valued at \$375,000 sold for \$345,900, a loss of \$29,100. The basis for calculating statutory compensation is therefore 387,900. The correct statutory compensation is \$10,758. The Petition for Final Distribution is **GRANTED**. A proposed order has been submitted and will be modified to reflect the above and executed by the Court. This matter is set for **Monday, August 11, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF PETER BEEMAN

Case Number: 24PB-0032455

This matter is on calendar for hearing on the Petition for Final Distribution on Waiver of Account. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed order has been submitted and will be executed by the Court. This matter is set for **Monday, August 11, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF ROGER BLACKTHORN

Case Number: CVPB22-0031404

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has not been properly noticed, as there is not timely served notice of hearing. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order.

This matter is also on calendar for hearing on an Order to Show Cause Re: Monetary Sanctions. Counsel filed a written response May 20, 2025. In light of the response, the Order to Show Cause is **VACATED**. **No appearance is necessary on today's calendar.**

ESTATE OF HAROLD BLANKENHEIM

Case Number: 25PB-0032863

This matter is on calendar for hearing on a Petition to Determine Succession to Real Property. The Petition contains the following defects:

1. The Petition fails to identify the subject property as the primary residence of the Decedent. The death certificate does not identify this real property as the decedent's residence on the date of death. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence. Judicial Council form DE-310 was updated April 28, 2025, to reflect these changes.
2. Item 3 of the attached will states, "If my wife survives me for one hundred twenty (120) days, I give all of my property and estate to her." While the Petition states that decedent was not survived by a spouse, the death certificate attached to the Petition indicates that decedent was survived by a spouse. A supplemental declaration must be filed providing the Court with the spouse's date of death to determine whether the property should pass to Petitioners or to the personal representative of the estate of Shirley Blankenheim.
3. Attachment 11 fails to identify the decedent's interest in the property.
4. The Inventory and Appraisal does not contain original signatures regarding the Statement About the Bond or Probate Referee and fails to comply with California Rule of Court 2.303 and Local rule 15.19 to qualify as a "fax filing."
5. The Inventory and Appraisal incorrectly states under item 4 that no probate referee is required; however, there is property included subject to appraisal by referee. Page 2 indicates a probate referee was used, thus the defect can be overlooked.
6. A proposed order has not been lodged with the court, as required by Local Rule 15.06.

Due to the defects Court cannot determine if proper notice has been given. This matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. An Amended Petition must be filed correcting the defects on the updated Petition form. Notice of Hearing must be timely served on all individuals entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF SCOTT BROWN

Case Number: 24PB-0032664

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed on May 1, 2025, is accepted by the Court. The Court notes the future date of December 22, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES CALLAHAN

Case Number: 24PB-0032410

This matter is on calendar to confirm the filing of Receipts and Petition for Final Discharge. No receipts have been filed. No Petition for Final Discharge is on file. A Status Report has been submitted requesting additional time to file the documents. The matter is continued to **Monday, July 21, 2025, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF WILLIAM CHELLAND

Case Number: CVPB19-0030316

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status report indicates that additional time is needed before the estate administration can be closed. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the September 15, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF JOSEPHINE CLINE

Case Number: CVPB17-0029336

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed, as ordered December 16, 2024, and April 28, 2025. The matter is continued to **Monday, July 28, 2025, at 2:30 p.m. in Department 44** for Status of Administration.

The Court will issue an Order to Show Cause to the Personal Representative as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to timely close the estate and failure to file a Status Report as ordered December 16, 2024, and April 28, 2025. The hearing on the Order to Show Cause is set for **Monday, July 28, 2025, at 2:30 p.m. in Department 44**. The clerk is directed to prepare a separate Order to Show Cause. **No appearance is necessary on today's calendar.**

ESTATE OF PHILIP CORCORAN

Case Number: 24PB-0032528

This matter is on calendar for confirmation of filing the Inventory and Appraisal and for hearing on an Order to Show Cause Re: Removal of the Personal Representative. The Inventory and Appraisal has not been filed. No response to the Order to Show Cause has been filed. **An appearance is necessary on**

today's calendar to address the Order to Show Cause. Failure to appear will result in the removal of the Personal Representative.

ESTATE OF DAVID CRAIG, SR.

Case Number: 25PB-0032919

This matter is on calendar for hearing on a Petition for Probate of Will. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The Petition incorrectly states the will is self-proving. It is not. No Proof of Subscribing Witness has been filed. This matter is continued to **Monday, August 4, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall file a Proof of Subscribing Witness at least five court days before the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF COLLEEN DAVIS

Case Number: CVPB21-0031378

This matter is on calendar for hearing on an Order to Show Cause Re: Removal of the Personal Representative. No Petition for Discharge has been submitted. No response to the Order to Show Cause has been filed. **An appearance is necessary on today's calendar to address the Order to Show Cause. Failure to appear will result in the removal of the Personal Representative, without discharge.**

ESTATE OF LUIS DELGADO

Case Number: 23PB-0032172

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed April 23, 2025, is accepted by the Court, despite the fact that item 4 incorrectly states that no probate referee is required by order of the Court dated October 28, 2024. The Court's order dated October 28, 2024, specifically appointed Susan Jeffers as probate referee.

This matter is also on calendar for hearing on an Order to Show Cause Re: Monetary Sanctions. As the Final Inventory and Appraisal has now been filed, the Order to Show Cause is **VACATED**. The Court notes the future date of November 3, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF SHIRLEY DESNOYER

Case Number: 24PB-0032647

This matter is on calendar for further proceedings on a Second Amended Petition for Letters of Administration. The Court has continued this matter several times to allow Petitioner to file a Third Amended Petition or supplemental declaration curing the defects noted at the hearing on March 17, 2025. Nothing has been filed. **An appearance is necessary on today's calendar to discuss status of an Amended Petition. Failure to appear will result in the Petition being denied.**

ESTATE OF KEVIN DIXON

Case Number: CVPB22-0031393

This matter is on calendar for confirmation of filing an amended or corrected Inventory and Appraisal. The Inventory and Appraisal has still not been filed. No Status Report has been filed. **An appearance is necessary on today's calendar to discuss the status of an amended or corrected Inventory and Appraisal and status of the estate administration.**

ESTATE OF MICHAEL GEORGE

Case Number: 24PB-0032619

This matter is on calendar for further proceedings on an Amended Final Report and Petition for Final Distribution on Waiver of Account. No Notice of Hearing on Mandatory Judicial Council form DE-120 has been filed with proper proof of service. The Court notes that distribution is being made to a trust, therefore an acknowledged statement by the trustees accepting the property under the terms of the trust must be filed in compliance with Local Rule 15.10(L). The matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner shall file and timely serve a Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF ORVILLE GORDON

Case Number: 25PB-0032858

This matter is on calendar for hearing on an Amended Spousal Property Petition. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that attachments 7a and 7b do not correctly articulate the legal description of the property and how it is affected by this Petition. Items 7a and 7b of the Petition explain how the property should be described. 7a should reflect that the decedent's 50% community property interest in the property is passing to the surviving spouse. 7b should reflect that the surviving spouse's 50% community property interest is confirmed to the surviving spouse. The Petition is **GRANTED**. The proposed order submitted does not correctly reflect the above. A revised proposed order is required that properly reflects what is to be included in Attachment 5a and in attachment 7a. They are two separate and distinct property interests. The matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for confirmation of receipt and execution of a corrected order. Upon execution of the order, the clerk is directed to close the file. **No appearance is necessary on today's calendar.**

ESTATE OF PATRICIA GRIFFIN

Case Number: 25PB-0032902

This matter is on calendar for hearing on a Petition for Probate of Will. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The original will has been lodged. The paperwork appears to be in order, with the exception that no proof of the will has been submitted. If Petitioner is seeking to probate the will as a holographic will, proper Proof of Holographic Instrument (Judicial Council Form DE-135) is required. If Petitioner is seeking to probate the will as a witnessed will, proof of subscribing witness is required. The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. **No appearance is necessary on today's calendar.**

ESTATE OF MORGAN HARVIN

Case Number: 24PB-0032458

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. At the last hearing, the clerk was directed to mail a copy of the minutes to the Personal Representative; however, the minutes were sent to an incomplete address. This matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for confirmation of filing the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final

Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of November 10, 2025, for Status of Administration. The clerk is directed to mail a copy of today's minutes to the personal representative at the complete address listed in Petitioner's last filing. **No appearance is necessary on today's calendar.**

ESTATE OF THOMAS HERRING

Case Number: 24PB-0032434

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, December 8, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF CAROL HILL

Case Number: 25PB-0032923

This matter is on calendar for a Petition to Determine Succession to Real Property and personal property. The matter has been properly noticed. The Petition suffers from the following defects:

1. Judicial Council form DE-310 is a mandatory form. This form was updated April 28, 2025, prior to the date of filing.
2. The Court notes the Petition seeks the transfer of personal property. This procedure can no longer be utilized to transfer personal property.
3. The Petition fails to identify the subject property as the primary residence of the Decedent. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence.
4. Attachment 11 fails to identify decedent's interest in the property.
5. Form DE-300 is not attached as required by item 8.

The matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An Amended Petition must be filed on the updated form. **No appearance is necessary on today's calendar.**

ESTATE OF REX KLEIN

Case Number: 25PB-0032908

This matter is on calendar for hearing on a Petition for Probate. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that two beneficiaries under the will are minor children and thus will require appointment of a guardian ad litem. The matter is continued to **Monday, June 30, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. An application for the appointment of guardian ad litem for both minor beneficiaries must be filed. Notice of Hearing for the continued hearing date will be required to be served on the Guardian Ad Litem. **No appearance is necessary on today's calendar.**

ESTATE OF STANLEY LINGENFELTER

Case Number: 25PB-0032867

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The matter has been properly noticed. The Petition indicates that mail was returned as to the surviving spouse and one of the children of decedent (Scotty). No information has been provided regarding efforts to locate the actual address or last known address of Petitioner's brother and mother (or step-mother). Proper proof of publication has been filed. No objections have been raised. Additional information is required regarding efforts to give proper notice to the above individuals. The matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES LOGAN

Case Number: 25PB-0032871

This matter is on calendar for hearing on a Petition for Probate of Lost Will. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. The Petitioner has established that the original will has been lost; therefore, a photocopy of the will is admitted to probate. A proposed Order was lodged with the Court and will be executed. Bond has been waived and letters shall issue. The court will issue an order **VACATING** the order for probate issued on December 9, 2024, in case 32659, as well as all future dates in that matter. The matter is set for **Monday, October 13, 2025, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. The matter is set for **Monday, June 8, 2026, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF BETH MACBETH

Case Number: 24PB-0032749

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal filed on May 28, 2025, is accepted by the Court. The Court notes the future date of February 2, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF DAVID MARTIN, SR.

Case Number: 23PB-0031921

This matter is on calendar for hearing on the Second Amended First and Final Account and Report and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The Inventory and Appraisal filed May 20, 2025, is accepted by the Court. The paperwork appears to be in order and the Petition is **GRANTED**, with the exception that the matter proceeded on a fee waiver, as the petitioner indicated there were no assets to pay the required court fees. As the estate now has assets from which the fees can be paid, the personal representative is ordered to pay \$555 in waived fees to the court. In addition, Petition requests any property of the estate acquired or discovered after the court order for final distribution be distributed to each heir in equal thirds. This request does not take into account the receipt of any future community property. A proposed order has been submitted and will be modified by the Court to reflect the order to pay fees, as well as to reflect that the surviving spouse is to receive 100% of any community property received. This matter is set for **Monday, August 4, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF STEPHEN MCINTOSH

Case Number: 22PB-0031852

This matter is on calendar for hearing on the Corrected Third Amended Petition for Final Distribution. The matter has been properly noticed, with proof of service on file. No objections have been raised. The assets of the estate are those of two businesses, McIntosh Properties and McIntosh Truck. The Petition requests that all property and interests of the four minor children be distributed to the mother under the California Uniform Transfers to Minors Act. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. No proposed order has been submitted as required by Local Rule 15.05. This matter is set for **Monday, June 23, 2025, at 2:30 p.m. in Department 44** for confirmation of lodging and execution of order. This matter is set for **Monday, August 18, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF MARY MONTALVO

Case Number: 25PB-0032906

This matter is on calendar for hearing on a Petition for Probate. The matter has not been properly noticed. There is no proof of service of the Notice of Petition. No proof of publication has been filed. The Petition also contains the following defects:

1. Item 1 does not indicate the newspaper where notice will be published.
2. 3f does not indicate whether the will is self-proving;
3. Either item 5a(3) or 5a(4) must be marked;
4. Either item 5a(7) or 5a(8) must be marked;
5. Items 6 and 7 are erroneously checked, as decedent was survived by issue.

The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. Petitioner shall file an Amended Petition which corrects the defects noted above. Petitioner shall also file and timely serve a new Notice of Petition for the continued hearing date. Proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF HAROLD MONTGOMERY, JR.

Case Number: 23PB-0032233

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF STEPHEN MORRILL

Case Number: 24PB-0032326

This matter is on calendar for hearing on the First and Final Report, Waiver of Account, and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have

been raised. The paperwork appears to be in order, with the exception that the distribution does not appear to be correct. The original Petition stated under penalty of perjury that the decedent was survived by issue of a deceased child. Those biological grandchildren were identified as Eric and Meghan. Those two would be the only intestate heirs. This issue will need to be addressed. Additionally, the report does not contain the information required by CRC Rule 7.550. The report is required to include information regarding creditor's claims (i.e., the name of the creditor, the amount of the claim, whether it was allowed or rejected, whether it was paid, and the amount that was paid. The report is required to give a description of all sales, purchases, and changes in form of assets. The report is required to provide a detailed schedule of receipts, gains, and losses where an amount other than the amount of the inventory and appraisal is used as a basis for calculating statutory fees. The matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings. An Amended Report and Petition is required addressing the above defects. Petitioner shall also file and timely serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF THOMAS MURRAY

Case Number: 22PB-0031748

This matter is on calendar for Status of Administration. A Petition for Final Distribution has been filed and is noticed for hearing on June 30, 2025. That date is confirmed. Today's hearing has been **VACATED. No appearance is necessary on today's calendar.**

ESTATE OF LINDA NIERENBERG

Case Number: 25PB-0032814

This matter is on calendar for an Amended Petition to Determine Succession to Real Property. The matter has been properly noticed. The Petition contains the following defects:

1. The Petition fails to identify the subject property as the primary residence of the Decedent. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence. Judicial Council form DE-310 was updated April 28, 2025, to reflect these changes and must be used.
2. There is no Form DE-300 or Inventory and Appraisal attached, as required under item 8.
3. The Court notes the copy of the will attached to the Petition is completely illegible.

The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An Amended Petition must be filed correcting the defects on the updated Petition form. **No appearance is necessary on today's calendar.**

ESTATE OF WESLEY PHILLIPS

Case Number: 22PB-0031702

This matter is on calendar for hearing on the First and Final Account and Report and Petition for Final Distribution. The Petition indicates that the sole intestate heir, Anthony Garcia, has executed a disclaimer. The legal effect of a disclaimer is that the person disclaiming their interest in the estate is deemed to have pre-deceased the decedent. Probate Code § 282. Consequently, Anthony Garcia's intestate heirs are now the intestate heirs of the decedent and would be entitled to notice of these proceedings. Nothing has been filed identifying who Mr. Garcia's intestate heirs are, and they do not appear to have been given notice of the proceeding. The matter is continued to **Monday, July 14, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An amended Petition or supplement to the Petition is required addressing the above defect. Petitioner shall also file and timely serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF DORIS RODGERS

Case Number: 24PB-0032535

This matter is on calendar for further proceedings on a Petition for Letters of Administration. A Second Amended Petition was filed May 7, 2025. The matter has been properly noticed, with proof of service on file. The Public Administrator remains the Personal Representative of the estate.

As to Mark Curtin's Petition, a Second Amended Petition for Letters of Administration was filed May 27, 2025. The Petition contains the following defects:

1. No proof of publication has been filed. The Petition states publication will be arranged via "Facebook." Probate Code § 8121 specifies that notice must be published in a newspaper of general circulation where the decedent resided at the time of death or where the decedent's property is located. "Facebook" is not legally recognized as a newspaper for the purposes of publishing the Notice of Petition to Administer Estate.
2. There are no proper grounds marked under Item 3(e) that allows the Court to waive the requirement of a bond.
3. On the Petition, item 5(a) 7 or 8 must be marked.
4. The matter has not been properly noticed. The proof of service filed May 27, 2025, indicates Mr. Curtin served the documents himself. The documents must be served by someone age 18 or older who is not a party to this cause. Mr. Curtin, as a party to the cause, is precluded from serving his own documents.
5. The Court notes previous Petitions indicated that the decedent had a will, and a copy of the will has been attached to multiple filings by Mr. Curtin. The Petitioner is now requesting Letters of Administration and says there is not a will. If there is no will, then Mr. Curtin has no interest in the property, as he is not an intestate heir.

As a personal representative has already been appointed in this matter, and Mr. Curtin does not have any superior priority for appointment, his Petition is **DENIED**.

A Request to Dismiss Full Probate was also filed by Mr. Curtin May 27, 2025. The request has not been properly noticed. In addition, there is no valid legal basis for dismissing the current estate administration. It is true that there is a probate procedure for small estates. That procedure is appropriate when the person entitled to inherit the property is the Petitioner. Otherwise, a probate is required. The request to dismiss full probate is **DENIED**.

Lastly, the matter is also on calendar for further proceedings on a Petition for Order Directing Return of Possession of Real Property. The Court previously deemed the matter properly noticed, and Mark Curtin has filed several responses. The Court has received and reviewed the Status Report filed May 22, 2025, which requests an extension of time. The matter is continued to **Monday, June 9, 2025, at 2:30pm in Department 44** for further proceedings regarding the 850 Petition. **No appearance is necessary on today's calendar.**

ESTATE OF JANELLE SALLADY

Case Number: 25PB-0032896

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that no proof of publication has been filed. The Court notes the Petition states that publication will be arranged via the Mt. Shasta Herald. Probate Code § 8121 specifies that notice must be published in a newspaper of general circulation where the decedent resided at the time of

death. The Petition indicates the decedent was a resident of Shasta Lake, CA, located in Shasta County. The newspaper of general circulation in Shasta Lake, CA is the Record Searchlight. The matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Proper proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF JACK SCHNEIDER

Case Number: CVPB22-0031397

This matter is on calendar for further proceedings regarding the First and Final Account and Report and Petition for Final Distribution. An Amended Petition has been filed and noticed for June 16, 2025. That date is confirmed. Today's hearing has been **VACATED. No appearance is necessary on today's calendar.**

ESTATE OF MARILYN SPRINGER

Case Number: 25PB-0032862

This matter is on calendar for hearing on a Petition to Determine Succession to Real Property. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition contains the following defects:

6. The Petition fails to identify the subject property as the primary residence of the Decedent. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence. Consequently, the court needs information to establish that the real property was the decedent's primary residence. Judicial Council form DE-310 was updated April 28, 2025, to reflect these changes.
7. The attached Inventory and Appraisal is defective, as it does not contain an original signature under the Statement About the Bond and for the Probate Referee and fails to comply with California Rule of Court 2.303 and Local rule 15.19 to qualify as a "fax filing."
8. Item 11 fails to identify the decedent's interest in the property.
9. Attachment 14 fails to identify the relationships of the individuals to the Decedent.
10. A proposed order has not been lodged with the court, as required by Local Rule 15.06.

This matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall file an Amended Petition curing the defects noted above on the updated Petition form. Petitioner shall also file and timely serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF DENNIS STINE

Case Number: 24PB-0032646

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. However, the Personal Representative has filed a Status Report indicating that additional time is needed before the Final Inventory and Appraisal can be filed. This matter is continued to **Monday, August 4, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and

Appraisal, and failure to comply with the Court's order. The Court notes the future court of December 15, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF LARRY TITTSWORTH

Case Number: 24PB-0032530

This matter is on calendar for hearing on the First and Final Report, and Petition for Final Distribution on Waiver of Account. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed order has been submitted and will be executed by the Court. This matter is set for **Monday, July 7, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF TRACIE WALKER

Case Number: 25PB-0032913

This matter is on calendar for hearing on a Petition to Determine Succession to Real Property. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order with the exception that the Petition fails to identify the subject property as the primary residence of the Decedent. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence. Consequently, the court needs information to establish that the real property was the decedent's primary residence. Judicial Council form DE-310 was updated April 28, 2025, to reflect these changes. This matter is continued to **Monday, July 7, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall file an Amended Petition or supplemental declaration to cure the defects noted above. **No appearance is necessary on today's calendar.**

TRUSTS

IN RE: BETTY RUTHERFORD TRUST

Case Number: 25PB-0032907

This matter is on calendar for hearing on the Petition for Confirmation of Assets. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition fails to establish that the Trustor intended to hold the subject property in Trust. The basis for the Petition is that, because the Trustor executed a pour-over will, she had a present intent to hold the subject property in the name of the Trust. A pour-over will indicates an intent that any property not held in Trust at time of death be devised to the Trust after death. A pour-over will does not support a present intent to hold the subject property in the name of the Trust during the decedent's lifetime. No other evidence was provided to show the decedent had a present intent to hold the subject property in Trust while she was living. The Petition is **DENIED** without prejudice. The clerk is instructed to close the file. **No appearance is necessary on today's calendar.**

IN RE: THE KEITH ALAN DIBBLE TRUST

Case Number: 25PB-0032844

This matter is on calendar for further proceedings on a Petition for Order Directing Return of Possession of Real Property to Trust. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Paperwork appears to be in order. The Petition is **GRANTED**. A proposed order was submitted and will be executed by the Court. The clerk is directed to close the file upon processing of the order. **No appearance is necessary on today's calendar.**

IN RE THE SHADWELL 1997 TRUST

Case Number: CVPB11-0026890

This matter is on calendar for hearing on a Petition for Approval of Thirteenth and Final Account and Report of Trustee. The matter has been properly noticed, with proof of service on file. No objections have been raised. The accounting contains the following defects:

1. The accounting is incomplete as it purports to cover the period beginning July 18, 2023, and ending August 31, 2024. No summary of account is attached for the period of May 13, 2024, to August 31, 2024.
2. There is an error in the calculation of Total Charges for the period of May 13, 2024, through August 31, 2024. The Total Charges add up to \$14,588.40, not \$14,488.40.
3. The Court notes that the property on hand as of May 12, 2024, was cash in the amount of \$1,146.86 and non-cash assets valued at \$204,735.33. As of May 13, 2024, one day later, the accounting indicates that property on hand only consisted of cash in the amount of \$2,614.14. Nothing in the accounting explains what happened to over \$200,000.00 in non-cash assets. The lodged account statements from Morgan Stanley indicate that the assets may have been omitted from the accounting in error.

The matter is continued to **Monday, July 21, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An Amended Petition must be filed curing the defects noted above. Petitioner shall also timely file and serve a new Notice of Hearing for the continued hearing date. **No appearance is necessary on today's calendar.**

IN RE THE STUART MARVIN OLIVER TRUST

Case Number: CVPB19-0029976

This matter is on calendar for further proceedings on the underlying Petition. At the last hearing, the parties indicated they were working on a resolution. Nothing further has been filed. The matter is continued to **Monday, July 7, 2025, at 2:30 p.m. in Department 44** for further proceedings. **No appearance is necessary on today's calendar.**

IN RE: SUMMA FAMILY TRUST

Case Number: 25PB-0032899

This matter is on calendar for hearing on a Petition for Instructions to Appoint Trustee and Determine Trust Beneficiaries. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed order has been lodged and will be executed by the Court. The clerk is directed to close the file upon processing of the order. **No appearance is necessary on today's calendar.**